

Calendar Line 2

Case Name: *Steer v. Town of Los Gatos, et al.*
Case No.: 22CV394907

Before the Court is the motion of Real Parties in Interest Daran Goodsell and Mark Von Kaenel (the “Von Kaenel Parties”) to dismiss the Petition for Peremptory Writ of Mandate and Complaint for Declaratory and Injunctive Relief as moot. The motion is unopposed. As discussed below, the Court GRANTS the motion to dismiss.

I. Background

Petitioner Alison Steer (“Steer”) filed this action on March 1, 2022. The Petition challenges the Town of Los Gatos’s (the “Town”) approval of Lot Line Adjustment No. M-20-012 (the “2021 Lot Line Adjustment”), which sought to reconfigure three parcels near 17200 Los Robles Way in Los Gatos. The Petition pleads three theories (abuse of discretion under the Los Gatos Municipal Code; lack of substantial evidence under the Subdivision Map Act; and violation of CEQA) and seeks a peremptory writ of mandate together with declaratory and injunctive relief. (Req. for Judicial Notice (“RJN”), Ex. 1.)

After Steer filed this action, the Town, over Steer’s objection, obtained a stay so it could consider a revised lot line adjustment application. The Town subsequently approved a revised lot line adjustment, No. M-23-01 (the “2023 Lot Line Adjustment”), pertaining to the same property. This action was stayed but not dismissed. (RJN, Exs. 1–2.)

Steer then filed a separate proceeding, *Steer v. Town of Los Gatos*, No. 24CV429584 (the “2024 Writ”), challenging the 2023 Lot Line Adjustment (No. M-23-01). The 2024 Writ expressly acknowledges that the 2023 Lot Line Adjustment revised the earlier approval. (RJN, Ex. 2, ¶¶ 3–4, 31–41.) This Department heard the 2024 Writ and, by its Order Re: Petition for Writ of Mandate entered January 17, 2025, resolved that matter, which is now pending on appeal before the Court of Appeal, Sixth Appellate District (No. H053166). In that Order, the Court observed that the prior action (this case) “challenged a different LLA (No. M-20-012) and the case was eventually stayed by the court, though it was not dismissed,” and that because

the later petition “is expressly based on a different LLA that superseded the prior LLA, the events of the prior lawsuit are not relevant.”

The Von Kaenel Parties filed the present motion to dismiss on June 15, 2026, supported by a memorandum of points and authorities and a request for judicial notice. On July 29, 2026, they filed a notice of non-opposition stating that no opposition to the motion is pending. The record before the Court contains no opposition from Steer or from any other party.

II. Request for Judicial Notice

The Von Kaenel Parties request judicial notice of two records of this Court: (1) the Petition in this action, No. 22CV394907 (Ex. 1); and (2) the Petition in No. 24CV429584 (Ex. 2). The existence and contents of court records are proper subjects of judicial notice. (Evid. Code, § 452, subd. (d); *In re J.P.* (2020) 55 Cal.App.5th 229, 232, fn. 2.) The Court takes judicial notice of the existence of these filings and of the operative allegations within them, though not of the truth of any disputed factual matter asserted therein. The Court GRANTS the request for judicial notice, subject to the limitations stated.

III. Legal Standard

A common-law, non-statutory motion to dismiss is a recognized vehicle for disposing of a moot pleading or proceeding. (5 Witkin, Cal. Procedure (6th ed. 2025) Pleading, §§ 1004, 1006; *McKay v. County of Riverside* (1959) 175 Cal.App.2d 247, 248 [recognizing a “non-speaking” motion to dismiss].) The device is an exercise of the court’s inherent power, in unusual circumstances, to prevent abuse of the judicial process and to end an action that no longer presents a live controversy.

“An issue becomes moot when some event has occurred which deprives the controversy of its life.” (*Giraldo v. Department of Corrections & Rehabilitation* (2008) 168 Cal.App.4th 231, 257.) Because courts decide actual controversies and do not render advisory opinions, a matter that has become moot is ordinarily subject to dismissal. (*Ibid.*)

IV. Analysis

A. Mootness of Challenge to 2021 Lot Line Adjustment

This action challenges a single agency action: the Town’s approval of the 2021 Lot Line Adjustment, No. M-20-012. That approval has been supplanted by the Town’s later approval of the 2023 Lot Line Adjustment, No. M-23-01, pertaining to the same property. The judicially noticed 2024 Writ confirms that the 2023 Lot Line Adjustment revised the earlier approval (RJN, Ex. 2, ¶¶ 3–4, 35–41), and this Court has already determined, in the related action, that the 2023 approval “superseded the prior LLA.” The operative land-use entitlement Steer set out to overturn in this action no longer governs the property.

With the 2021 Lot Line Adjustment no longer in effect, a writ directing the Town to set that approval aside would afford Steer no effective relief, and a declaration concerning its validity would be advisory. The same is true of the requested injunctive relief. No live controversy concerning the 2021 Lot Line Adjustment remains for decision. The Petition is therefore moot.

B. Effect of Pending Appeal in the 2024 Writ

The pendency of the appeal in No. 24CV429584 (Court of Appeal No. H053166) does not revive this action. That appeal concerns the validity of the 2023 Lot Line Adjustment, not the 2021 Lot Line Adjustment challenged here. Even a reversal and remand directed at the 2023 approval would not reinstate the superseded 2021 approval or restore a live dispute over it. The two proceedings target distinct agency actions and have not been consolidated.

C. Non-Opposition

Petitioner Steer has not opposed the motion. A party’s failure to oppose a motion may be construed as an abandonment of any objection and, in the trial court’s discretion, as a concession that the motion has merit. (See Cal. Rules of Court, rule 8.54(c) [failure to oppose may be deemed a waiver].) In any event, mootness is a matter the Court independently assesses, and the judicially noticed records establish it here.

D. No Discretionary Exception Warranted

A court retains discretion to decide an otherwise moot matter that presents an issue of broad public interest likely to recur yet to evade review, or where a material question remains for the court's determination. (See, e.g., *Edelstein v. City and County of San Francisco* (2002) 29 Cal.4th 164, 172.) No party has invoked any such exception, and none is apparent. This case turns on the validity of a specific, now-superseded lot line adjustment affecting a single property; it presents fact-bound land-use questions rather than a recurring issue of broad public importance that would evade review. The Court declines to exercise its discretion to retain the action.

V. Conclusion

The motion to dismiss is GRANTED. The Petition for Peremptory Writ of Mandate and Complaint for Declaratory and Injunctive Relief is dismissed as moot.

The prevailing party shall prepare the order in accordance with California Rules of Court, rule 3.1312.

Case will be dismissed and closed upon filing of the order after hearing.

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Calendar Line 3

Case Name: *Khatanbaatar v. Infogain Technologies, Inc. et al.*
Case No.: 23CV424955

This is a putative class and representative action arising from alleged wage and hour violations. In the operative Second Amended Complaint against defendant Infogain Technologies, Inc. (“Defendant”), plaintiff Orgil Khatanbaatar alleges failures to provide meal and rest periods, pay hourly wages and overtime, pay proper sick pay, provide accurate wage statements, timely pay final wages, and reimburse business expenses, as well as related unfair competition and PAGA penalties.

Plaintiff moves for preliminary approval of the settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for preliminary approval and sets a final approval hearing for March 3, 2027 at 1:30 p.m. in Department 5.

Case Management Conference at 2:30 p.m. is VACATED.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiff’s case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks*